

Social Welfare Act, 1992

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Social Welfare Act, 2049

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Amending Acts

1. Act to Revive the Provisions of Some Nepal Acts, 2063 2063.4.23
2. Republic Strengthening and Some Nepal Laws Amendment Act, 2066 2066.1.7
3. Some Nepal Acts Amendment Act, 2072 2072.11.13
4. Act to Amend Some Nepal Acts to Make them Consistent with the Constitution of Nepal, 2075 2075.1.19

Act No. 29 of the year 2049

An Act Made to Provide for Social Welfare

Preamble: Whereas, for the comprehensive development of Nepal and Nepali society, it is desirable to integrate various activities related to social welfare work and social service with development and construction works, to enable the weak and helpless individuals, classes and communities of the society to live a humane life, to enhance the dignity and prestige of social service associations, institutions and individuals, and to coordinate the work and activities of non-governmental social associations and institutions,

Therefore, this Act is enacted by the Parliament in the twenty-first year of the reign of His Majesty King Birendra Bir Bikram Shah Dev. 1. Short Title and Commencement: (1) This Act may be cited as the "Social Welfare Act, 2049".

(2) This Act shall come into force immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Social Welfare Work" means social work carried out to provide services for the weak, helpless and disabled individuals of the society and to economically and socially empower the backward classes of the society.

(b) "Social Service" means social welfare work carried out individually or collectively without the objective of profit.

(c) "Social Association or Institution" means a non-governmental social association or institution established pursuant to the prevailing law to carry out social welfare work and engaged in social service.

(d) "Council" means the Social Welfare Council established pursuant to Section 5.

(e) "Chairperson" means the Chairperson of the Council.

(f) "Member" means a member of the Council, and said term shall also denote the Chairperson,

Vice-Chairperson, Treasurer and Member-Secretary of the Council.

(g) "Constitution" means the constitution of an association or institution.

(h) "Prescribed" or "as prescribed" means prescribed or as prescribed in the rules made under this Act. 3. Social Welfare Program: The Government of Nepal may conduct social welfare programs through the relevant ministry and social associations or institutions to support the comprehensive development of the country through various activities related to social welfare work. 4.

Special Programs Relating to Social Welfare: The Government of Nepal may conduct special programs on the following matters relating to social welfare work and social service:- (a) To promote the welfare and well-being of children, the elderly, the helpless or persons with disabilities, (b) To increase participation for development and to protect and promote the rights and interests of women, (c) To enable persons suffering from juvenile delinquency, drug abuse or other addictions and social perversions to live a dignified and respectable life, (d) To enable unemployed, poor or illiterate persons to live a respectful life, (e) To regulate the activities of religious sites and trusts (Guthis), (f) To make necessary arrangements for the benefit of the backward community or class. 5. Establishment of the Council: (1) A Social Welfare Council is established to conduct social welfare work in a well-organized manner by coordinating, mobilizing support for, and promoting social associations or institutions. (2) The Council shall consist of the following members:- (a) Amended by the Act to Amend Some Nepal Acts to Make them Consistent with the Constitution of Nepal, 2075. Minister, Ministry of Women, Children and Senior Citizens ? Chairperson (b) One social worker nominated by the Government of Nepal ? Vice-Chairperson (c) One social worker nominated by the Government of Nepal ? Treasurer (d) Omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. (e) Member (looking after Social Service), National Planning Commission ? Member (f) Up to four persons nominated by the Government of Nepal from among social workers, including at least one woman ? Member (g) Three persons nominated by the Government of Nepal from various social associations or institutions ? Member (h) Amended by the Act to Amend Some Nepal Acts to Make them Consistent with the Constitution of Nepal, 2075. Representative, Relevant Ministry (looking after Social Welfare) ? Member (i) Representative, Ministry of Home Affairs ? Member (j) Amended by the Act to Amend Some Nepal Acts to Make them Consistent with the Constitution of Nepal, 2075. Representative, Ministry of Federal Affairs and General Administration ? Member (k) Representative, Ministry of Finance ? Member (l) Amended by the Act to Amend Some Nepal Acts to Make them Consistent with the Constitution of Nepal, 2075. Representative, Ministry of Health and Population ? Member (m) Amended by the Act to Amend Some Nepal Acts to Make them Consistent with the Constitution of Nepal, 2075.

Representative, Ministry of Education, Science and Technology ? Member (n) Person nominated by the Government of Nepal ? Member-Secretary (3) The term of office of nominated members shall be four years, and they may be re-nominated. (4) The Government of Nepal may, As amended by the Social Welfare (First Amendment) Ordinance, 2062 and automatically revived by the Act to Revive the Provisions of Some Nepal Acts, 2063. upon the recommendation of the Council stating reasons, by publishing a notice in the Nepal Gazette, alter or replace the members of the Council. 6. Council to be a Corporate Body: (1) The Council shall be an autonomous and corporate body with perpetual succession. (2) The Council shall have a separate seal for all its acts and business. (3) The Council may, like an individual, acquire, use, sell or otherwise dispose of movable and immovable property. (4) The Council may, like an individual, sue and be sued in its own name. (5) The Council shall have its own separate flag. 7. Office of the Council: (1) The central office of the Council shall be located in Kathmandu. (2) The Council may open liaison offices within Nepal Omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. as required. 8. Meetings and

Decisions of the Council: (1) The meeting of the Council shall be held at the date, time and place specified by the Chairperson, at least twice a year. (2) The presence of at least fifty percent of the total number of members of the Council shall constitute a quorum for a meeting of the Council. (3) The meeting of the Council shall be presided over by the Chairperson. In the absence of the Chairperson, the Vice-Chairperson, and in the absence of both the Chairperson and Vice-Chairperson, a member chosen by the members from among themselves shall preside over the meeting. (4) The opinion of the majority shall prevail at a meeting of the Council, and in the case of a tie, the Chairperson shall cast the deciding vote. (5) The decisions of the Council shall be certified As amended by the Social Welfare (First Amendment) Ordinance, 2062 and automatically revived by the Act to Revive the Provisions of Some Nepal Acts, 2063. by the Member-Secretary. (6) Other procedures relating to the meetings of the Council shall be as determined by the Council itself. 9.

Functions, Duties and Powers of the Council: The functions, duties and powers of the Council shall be as follows:- (a) To effectively conduct social welfare work, to support social associations or institutions, to coordinate among them, and to monitor, supervise and evaluate their work, or cause it to be done. (b) To provide or cause to be provided necessary assistance for the establishment, development, expansion and strengthening of social associations or institutions. (c) To act or cause to be acted as a coordinator between the Government of Nepal and social associations or institutions. (d) To provide necessary advice to the Government of Nepal regarding policy formulation and program design relating to social welfare work and social service. (e) To establish and operate or cause to be established and operated funds for social welfare work. (f) To act or cause to be acted as an information and records center for associations or institutions affiliated with the Council engaged in social service. (g) To provide training, conduct or cause to be conducted studies and research on subjects related to social welfare work. (h) To conduct or cause to be conducted physical inspection of social associations or institutions affiliated with the Council. (i) To perform or cause to be performed other necessary functions for implementing the objectives of this Act. (j) To make or cause to be made necessary agreements or contracts with domestic, foreign or international associations or institutions and foreign states. (k) To mobilize assistance from national and international spheres and to make proper arrangements for the received assistance fund. 10. Formation of Executive Committee: (1) The Council shall form an Executive Committee from among the members of the Council for the conduct of its business. This Committee shall consist of up to seven members including the Chairperson, Vice-Chairperson, Treasurer As amended by the Social Welfare (First Amendment) Ordinance, 2062 and automatically revived by the Act to Revive the Provisions of Some Nepal Acts, 2063. and Member-Secretary of the Council. (2) The Executive Committee shall prepare the annual program, budget and necessary policy matters from the Council and get them approved by the meeting of the Council for implementation. (3) Except as mentioned in sub-section (2), other functions, duties and powers of the Executive Committee shall be as prescribed. 11. May Form Sub-Committees: (1) The Council may form sub-committees as required for the smooth conduct of its work. (2) The functions, duties, powers and procedures of the sub-committees formed pursuant to sub-section (1) shall be as specified by the Council. 12.

Permission and Agreement: (1) A foreign non-governmental association or institution wishing to work within Nepal Omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. shall submit an application to the Council for permission to work before starting work. (2) The Council may grant permission by making a decision within a maximum of three months from the date of receipt of the application pursuant to sub-section (1). (3) A foreign non-governmental association or institution that has obtained permission pursuant to sub-section (2) must enter into an agreement with the Council before conducting work within Nepal. 13. Affiliation with the Council: (1) Social associations or institutions wishing to be affiliated with the

Council shall submit an application to the Council in the format as prescribed. (2) Social associations or institutions submitting an application pursuant to sub-section (1) shall clearly specify along with the application their constitution, names, occupations, addresses of members of the working committee, and the office and date of registration of the institution. (3) After receipt of the application pursuant to sub-section (1), upon making necessary inquiry into such application and if it is deemed appropriate to affiliate the concerned social association or institution with the Council, the Council shall charge fees as prescribed and issue a certificate in the format as prescribed. (4) A social association or institution affiliated with the Council may disaffiliate itself from the Council as prescribed. 14. Provisions Relating to Constitution: The constitution of social associations or institutions wishing to be affiliated with the Council must contain matters as prescribed in addition to the matters mentioned in the prevailing law. 15. Provisions Relating to Social Associations or Institutions that have Obtained Certificate: (1) Associations or institutions that have obtained a certificate from the Social Service National Coordination Council prior to the commencement of this Act shall be deemed to be affiliated with the Council under this Act. (2) Social associations or institutions affiliated with the Council pursuant to sub-section (1) shall make necessary amendments and adjustments to their constitution under this Act and submit it to the Council within one year from the commencement of this Act. 16.

Relating to Financial Assistance: (1) If any social association or institution wishes to receive in-kind, technical, financial or any other kind of assistance from the Government of Nepal or a foreign government, international social association, institution or mission or individual, it shall submit an application to the Council as prescribed along with the proposal for the work or project for which assistance is sought and other details. Provided that, in the case of programs that need to be completed urgently, assistance of up to two hundred thousand rupees annually may be taken after giving prior notice to the Council, and a report shall be submitted to the Council within three months after the completion of such work. (2) After receipt of an application pursuant to sub-section (1), the Council, coordinating with the relevant ministry or body, shall grant approval within a maximum of forty-five days. Provided that, any work or project adverse to the national interest may be rejected. (3) While implementing an approved project, it shall be done in cooperation and coordination with the concerned Amended by Some Nepal Acts Amendment Act, 2072. local level. (4) Notwithstanding anything written in sub-section (1), in the case of assistance received by institutions established in accordance with international conventions to which the Government of Nepal is a party, for emergency relief services, prior approval from the Council shall not be required. Provided that, after receiving such assistance, information shall be given to the Council. (5) When a foreign institution provides financial assistance to an approved project, it must be provided through commercial banks operating within Nepal Omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066.. 17. Fund of the Council: (1) The Council shall have its own separate fund, and the following amounts shall be included in that fund:- (a) Amount received from the Government of Nepal, (b) Amount received from any foreign government, international association or institution or foreign institution through the Government of Nepal, (c) Amount earned from the movable and immovable property of the Council, (d) Amount provided by any person, institution or state as donation, assistance, grant or endowment, (e) Amount received from any other source. (2) All amounts of the Council shall be deposited in an account opened in the name of the Council at Nepal Rastra Bank or any commercial bank. (3) All expenses to be borne on behalf of the Council shall be borne from the fund pursuant to sub-section (1). (4) The operation of the Council's account shall be as prescribed. 18.

Accounts and Audit: (1) The accounts of the Council shall be maintained in the manner adopted by the Government of Nepal. (2) The audit of the Council shall be conducted by the Office of the Auditor General. (3) The accounts and audit of social associations or institutions affiliated with the Council shall be as

prescribed. (4) The Government of Nepal may, if it so desires, inspect or cause to be inspected the account books, related documents, cash and stores of the Council at any time. (5) The Council may, if it so desires, inspect or cause to be inspected the account books, related documents, cash and stores of social associations or institutions affiliated with the Council at any time. 19. Delegation of Powers: (1) The Council may delegate the powers vested in it under this Act, as required, to the Chairperson, Vice-Chairperson, Member, the Executive Committee pursuant to Section 10, or the sub-committee pursuant to Section 11. (2) The Chairperson may delegate the powers vested in him/her, as required, to any member or authorized employee of the Council. 20. May Suspend or Dissolve: (1) If the working committee of any social association or institution affiliated with the Council or receiving financial assistance through the Council acts contrary to the prevailing Nepal law or its own constitution, the Government of Nepal may, upon the recommendation of the Council, suspend such working committee for a prescribed period or dissolve it. Provided that, before such suspension or dissolution, a reasonable opportunity shall be given to such working committee to present its defense. (2) If the working committee of any social association or institution is suspended pursuant to sub-section (1), the Government of Nepal may form an ad-hoc committee from among the general members of such association or institution to conduct the affairs of such association or institution until the suspension is lifted, and if dissolved, until a new working committee is formed. (3) If the working committee of any social association or institution is dissolved due to reasons pursuant to sub-section (1), the ad-hoc committee formed pursuant to sub-section (2) must form a new working committee in accordance with the constitution of such association or institution within three months from the date of such formation. 21. Provisions Relating to Employees: (1) The Council may appoint employees as required. (2) The remuneration, terms of service and facilities of the employees of the Council shall be as specified by the Council. 22. Involvement of Social Associations or Institutions: Employees of the Council shall not be involved as office bearers or members of the working committees of social associations or institutions affiliated with the Council. 23.

Annual Report: (1) The Council shall, within six months from the date of expiry of each fiscal year, submit an annual report, including the audit report and a detailed account of its activities, to the Amended by the Act to Amend Some Nepal Acts to Make them Consistent with the Constitution of Nepal, 2075. Ministry of Women, Children and Senior Citizens. (2) A social association or institution affiliated with the Council shall, within six months from the date of expiry of each fiscal year, submit an annual report showing details of its work along with the audit report to the Council. 24. Power to Remove Difficulties: If any difficulty arises in the implementation of this Act, the Government of Nepal may, by issuing an order published in the Nepal Gazette, remove such difficulty. 25. Contact with Government of Nepal: When contacting the Government of Nepal, the Council shall do so through the Amended by the Act to Amend Some Nepal Acts to Make them Consistent with the Constitution of Nepal, 2075. Ministry of Women, Children and Senior Citizens. 26. Power to Frame Rules: The Council may frame necessary rules for the fulfillment of the objectives of this Act. 27. Repeal and Saving: (1) The Social Service National Coordination Council Act, 2034 is hereby repealed, and the rights and liabilities of the Social Service National Coordination Council shall vest in the Council established under this Act. (2) Employees working in the Social Service National Coordination Council shall be transferred to the Council established under this Act.